

RESOLUTION NO. _____

REVIEWED

By Alessandra at 10:27 am, Feb 04, 2020

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR ALLIANCE ADDITION, 4TH FILING, A REPLAT OF A PORTION OF LOT 1, BLOCK 1, ALLIANCE ADDITION, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF RIDGE ROAD AND JACKSON STREET)."

WHEREAS, Christian and Missionary Alliance Church of Cheyenne, has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Christian and Missionary Alliance Church of Cheyenne, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Alliance Addition, 4th Filing, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2020.

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

STAFF REPORT - SUMMATION

Alliance Addition, 4th Filing Final Plat

CASE NUMBER(s): UDC-19-00743

SUBDIVISION CODE: ALC 04

PREPARED BY: Seth Lloyd

MEETING DATES:

Planning Commission:	February 3, 2020
City Council:	February 10, 2020
Public Service Committee:	February 19, 2020
City Council:	February 24, 2020

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff:

- Master Application, Final Plat Map, Drainage Analysis, Transportation Worksheet, Open Space Narrative

FEES DUE AT SIGNING OF THE PLAT: \$1,680.00

PLANNING COMMISSION RECOMMENDATION: At their regular meeting on February 3, 2020, the City of Cheyenne Planning Commission recommended approval of the Final Plat by a vote of 4-0.

STAFF RECOMMENDATION: Staff recommends approval of the Final Plat.

STAFF REPORT

Alliance Addition, 4th Filing Final Plat

CASE NUMBER(s): UDC-19-00743 **SUBDIVISION CODE:** ALC 04
PREPARED BY: Seth Lloyd
PUBLIC HEARING: February 3, 2020 (Planning Commission)

OWNER(s): Christian and Missionary Alliance Church of Cheyenne (307) 635-1014
Jason D. Taylor
5200 Ridge Road
Cheyenne, WY 82009

AGENT: Steil Surveying & Development Services (307) 634-7273
Casey Palma
1102 W. 19th Street
Cheyenne, WY 82001

PROJECT: Alliance Addition, 4th Filing Final Plat

WORK DESCRIPTIONS: A replat of a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of Ridge Road and Jackson Street).

LOCATION: 1. Legal Description: a portion of Lot 1, Block 1, Alliance Addition, Cheyenne, Wyoming.
2. Location: northwest corner of the intersection of Ridge Road and Jackson Street
3. Addresses: 5200 Ridge Road

SIZE: 5.60 acres

CURRENT ZONING: MR Medium-density Residential
PROPOSED ZONING: MR Medium-density Residential

EXISTING LAND USE: Neighborhood Assembly (church)
PROPOSED LAND USE: Residential, Neighborhood Assembly

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Single-family Residential	MR, County MR	City, County
South	Townhomes	MR, MUB	City
East	Single-family Residential	MR, County MU	City, County
West	Single-family Residential	MR	City

EXECUTIVE SUMMARY:

This plat proposes dividing one large parcel into 17 parcels. The proposal includes 8 lots for duplex development, 6 lots for townhome development, one parcel for detention, one parcel for open space, and one parcel for the existing church. The property is currently within City limits and zoned MR Medium-density Residential.

The layout of the Final Plat is substantially similar to the layout of the approved Preliminary Plat. The Final Plat has appropriately addressed the conditions placed on the Preliminary Plat approval. Jackson Street was designated as a collector street, but was not functioning as a collector (due to the low traffic counts and limited potential for future development to add traffic). The Metropolitan Planning Organization Policy Committee met on December 19, 2019, and officially changed Jackson Street's classification to a local street.

The transportation network in this area of the community is previously developed, and there is limited opportunity for this plat to contribute to the street network.

Due to meeting the review criteria set forth in Section 2.1.3.d of the Cheyenne Unified Development Code, staff recommends the Planning Commission approve this final plat.

LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Map showing location of the subject property located at the northwest corner of the intersection of Ridge Road and Jackson Street.

Source: Cheyenne/Laramie County GIS Cooperative

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Alliance Addition, 4th Filing, from the intersection of and Jackson Street and alley [located to the west of the property], facing east.
Source: Planning and Development Department



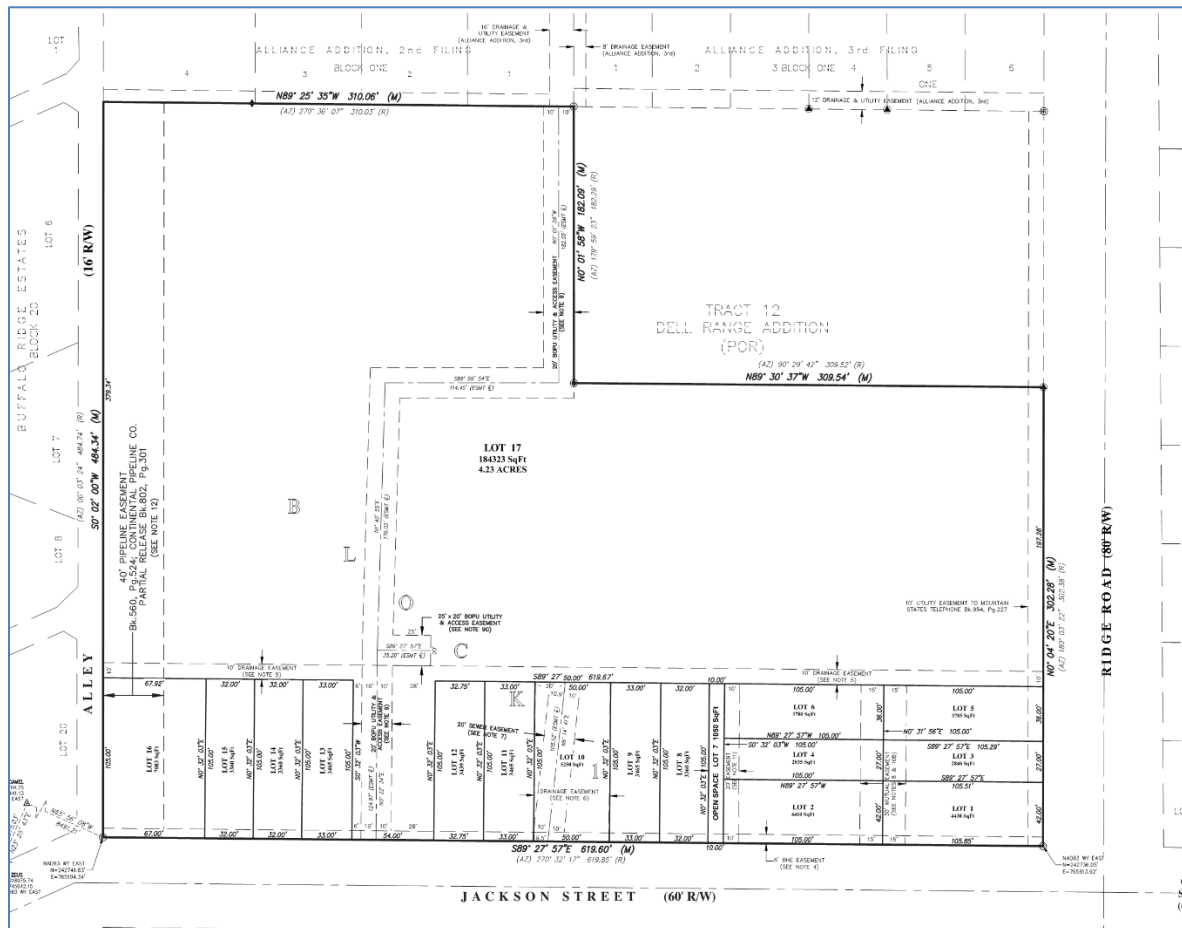
Photograph #2 – Alliance Addition, 4th Filing, from Jackson Street, facing north.
Source: Planning and Development Department

FINAL PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed final plat, the Staff, Planning Commission and City Council shall use the following 3 criteria, as found in Section 2.1.3.d:

1. CONFORMANCE WITH PRELIMINARY PLAT - *The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.*

The final plat as submitted is substantially similar to the layout shown in the approved preliminary plat. The ownership parcel containing the existing church has been included within the plat boundary. A drainage easement not shown on the preliminary plat has been added to the final plat. Lots, blocks, and easements are all aligned according to the approved preliminary plat.

Lots 1-6 are proposed as townhome lots (AD1). Lots 8-9 and 11-16 are proposed as duplex lots (SD3). Lot 7 is designated for open space. Lot 10 is designated for open space and drainage. Lot 17 contains the existing church.



Alliance Addition, 4th Filing Final Plat Map.

2. CONDITIONS - *The application meets any conditions or modifications of the approved preliminary plat.*

The following conditions were placed on the Preliminary Plat:

1. The final plat and associated submittal documents shall include the entirety of the parent tract, including the church. The church lot shall be platted as an individual lot.
2. Block(s) shall be numbered.
3. For final plat submittal, dedicate 10' of additional right-of-way to the north side of Jackson Street, and provide an alley or access easement to allow rear access to all parcels fronting Jackson Street – unless Jackson Street has been reclassified as a local street (or substantial progress has been made to reclassify Jackson Street by the appropriate agencies).

The Final Plat map submitted fulfills conditions 1 and 2. The Metropolitan Planning Organization Policy Committee met on December 19, 2019, and officially changed Jackson Street's classification to local street. This reclassification by the policy committee effectively fulfills condition number 3.

3. SUBDIVISION STANDARDS - *The application meets the purposes, intent, and applicable standards of Article 4.*

Transportation Network:

This plat is part of a block which has a perimeter of about 3,500'. The standard for maximum perimeter for newly developing residential areas is 2,200'. However, due to the surrounding development patterns, there is little opportunity for this plat to create a meaningful break in the existing block. Due to the previous development patterns, and as this plat is under 10 acres, Staff's judgement is that the plat qualifies for the infill exception from maximum block sizes (UDC 4.3.3.c.6).

Community Facility Fees:

This land was previously platted in 1981 as Alliance Addition. The City charged plat fees at the rate of \$400 per acre in 1980's, and the land contained within this replat is presumed to have paid the appropriate plat fees with the original plat; therefore \$2,240 will be credited toward this proposed plat's fees. This plat proposes platting the subject property for residential development. The Residential enhancement fee is \$400 per unit, and 14 residential lots are proposed.

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre.

There are approximately 5.6 acres of land contained within the plat boundary.

The required fees for the 5.6 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$1,960 (\$350 per acre)
Infrastructure Fee	\$1,960 (\$350 per acre)
Credit for plat fees previously paid	-\$2,240

Total Land Acquisition & Infrastructure Fees: \$1,680.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Projected Residential Enhancement Fee \$5,600 (\$400 per unit)

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Open Space:

During the plat process, this property is not required to provide open space. Residential open space is not required at time of platting on infill development of less than 10 acres, as long as alternative open space options are available (UDC 4.4.3.b.3). The applicant has indicated the intent to meet the requirements of on-site open space found in Article 6 (UDC 6.6.3.a.2), by providing yards and patios. The applicant has also indicated the church property may effectively serve as open space available to these residents. The plat also includes a detention pond parcel and an open space parcel to provide a frontage for the proposed townhome lots 2, 4, and 6.

Required Improvements:

This division can provide all required utilities to the properties within this development.

REVIEW

REVIEWING AGENCIES WITH COMMENTS:

- Development (Susana Montana and Seth Lloyd)
 - o **(FYI)** The "1" in "Block 1" gets lost in the lower lot, please make it more prominent.
 - o **(FYI)** The transportation worksheet may need to include the traffic or trip counts for the church.
 - o **(FYI)** All conditions appear fulfilled with final plat submittal.
 - o **(FYI)** Final Plat layout is substantially similar to Preliminary Plat layout.
- Laramie County Assessor (Clarice Blanton)
 - o **(FYI)** Note 11 states Lot 7 is granted to Owners of Lots 2, 4 and 6. Will the interest be on an equal undivided basis? Any document which transfers interest of Lots 2, 4 and 6 should also transfer the interest in Lot 7.
- Laramie County School District #1 (Chris Hout)
 - o **(FYI)** This This development site falls within the East Triad -- student's home attendance boundaries are East High School, Carey Junior High School and Meadowlark (5-6) and Buffalo Ridge (K-4) Elementary Schools. The current attendance for these schools is as follows:
 - Buffalo Ridge (grades K-4) -- below capacity, some space available most grades.
 - Meadowlark Elementary (grades 5-6) -- at or near capacity, limited space may be available both grades
 - Carey Junior High -- slightly below capacity with some space available in both grades.
 - East High -- Near or at capacity, limited to no space available all grades.
- Suncor (Dillon Ohrt)
 - o **(FYI)** Suncor and applicant have entered into an agreement regarding development on Suncor's easement. Suncor has no objections to the project.

All other reviewing agencies did not provide comments.

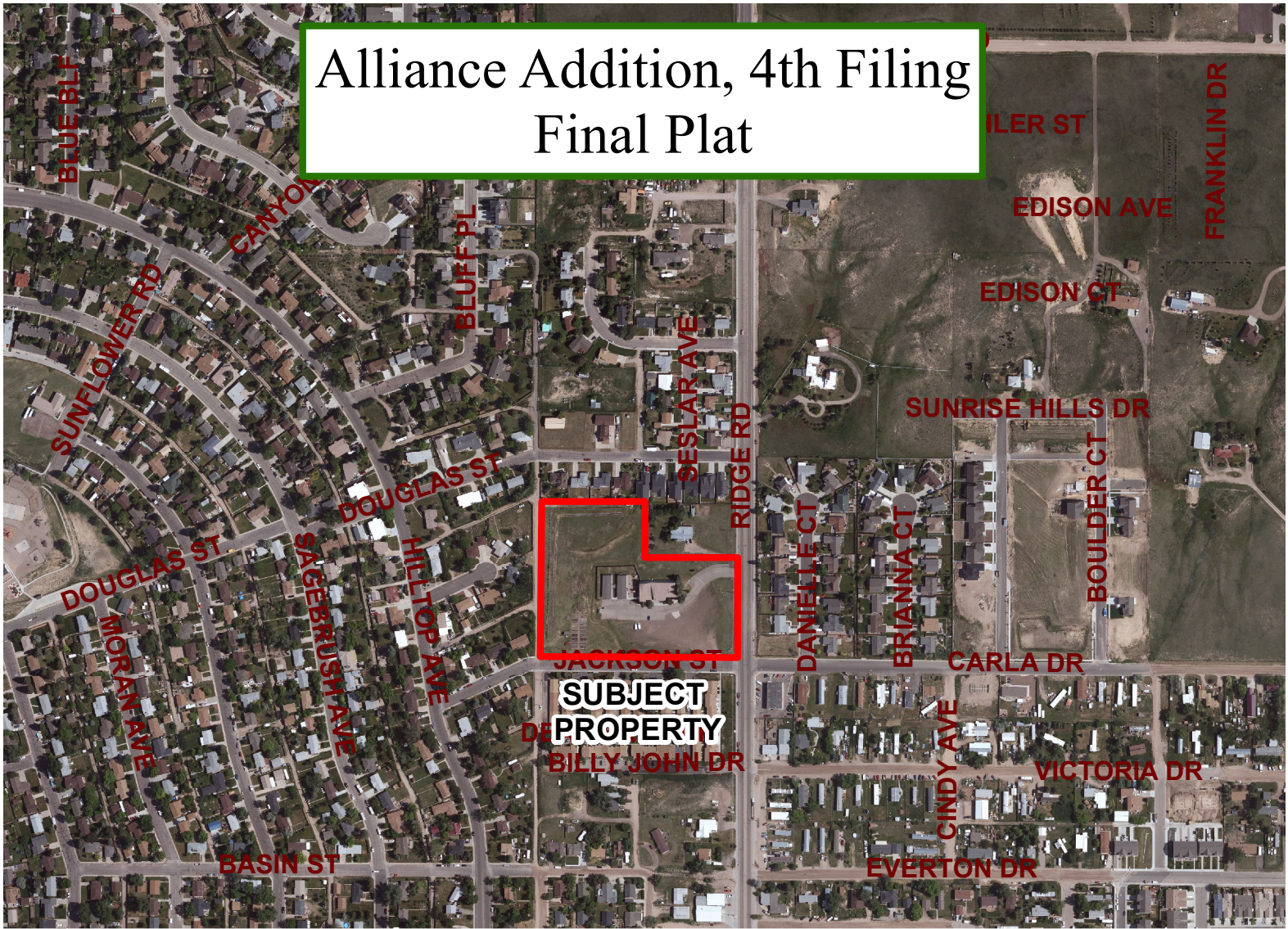
OTHER COMMENTS RECEIVED:

- None

Attachments: Aerial Map
Final Plat Map

cc: Owner; Agent/Applicant; File

Alliance Addition, 4th Filing Final Plat

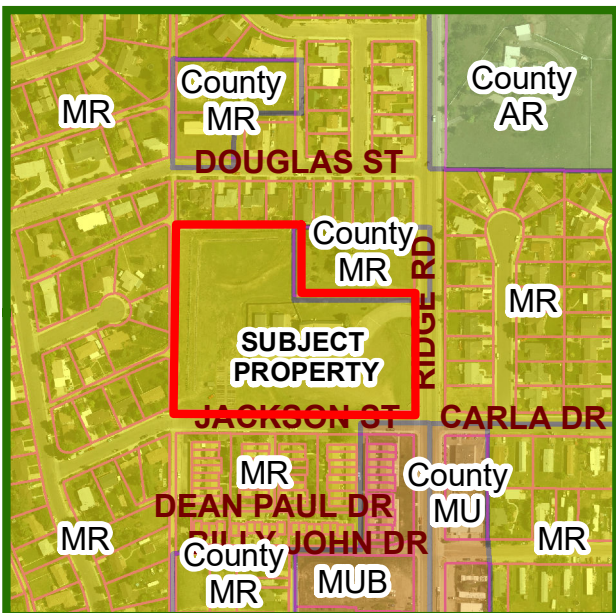


Application Number
Final Plat
UDC-19-00743

Applicant: Jason D. Taylor
Christian and Missionary Alliance Church
Agent: Casey Palma
Steil Surveying & Development Services

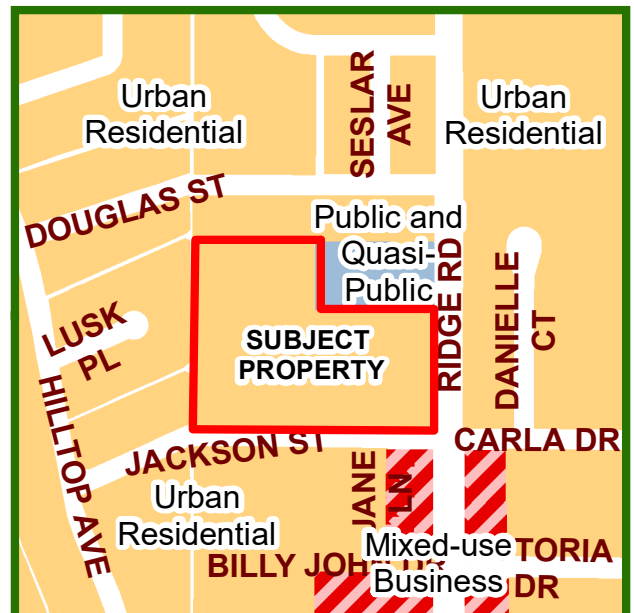
0 500 1,000
Feet

Current Zoning

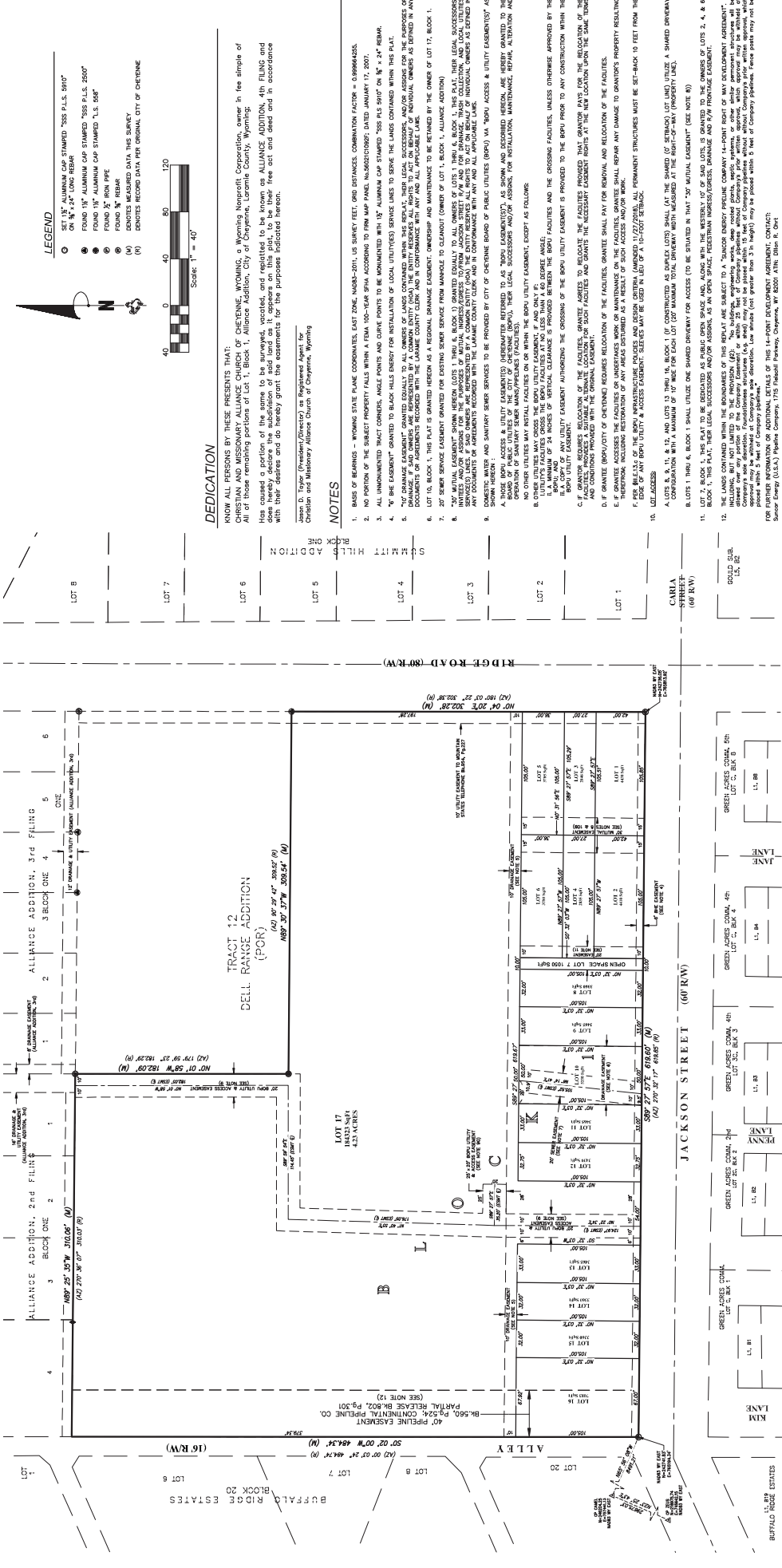


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



DOMESTIC WATER & SANITARY SEWER PROVIDED BY CITY OF CHEYENNE BOPH - FIRE PROTECTION TO BE PROVIDED BY CHEYENNE FIRE & RESCUE - THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE



VACATION STATEMENT
IT IS THE INTENT OF THIS REPORT TO VACATE ALL THOSE REMAINING PORTIONS OF LOT 1, BLOCK 1, ALLIANCE ADDITION (1st FILING), CITY OF CHEYENNE, WYOMING, WHICH FALL WITHIN THE PLAT BOUNDARY. EXISTING EASEMENTS ARE TO REMAIN UNLESS NOTED OTHERWISE.

APPROVALS
Approved by the City of Cheyenne Planning Commission this ____ day of _____, 2020.

ACKNOWLEDGEMENT
STATE OF WYOMING }
COUNTY OF LARAMIE } SS
The foregoing instrument was acknowledged before me this ____ day of _____, 2020, by Jason D. Taylor (President/Director) as Registered Agent for Christian and Missionary Alliance Church of Cheyenne, Wyoming.

FILING RECORD

CERTIFICATE OF SURVEYOR

ALLIANCE ADDITION 4th FILING

A REPLAT OF ALL OF THOSE REMAINING PORTIONS OF LOT 1, BLOCK 1, ALLIANCE ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED MAY 2019

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1100 WEST 126th ST. CHEYENNE, WY. 82001 • (307) 634-7473
758 GILBERT ST. WHEATLAND, WY. 82201 • (307) 558-5769
www.steilsurvey.com • info@steilsurvey.com

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VICINITY MAP

NOTES

LEGEND

DEDICATION

NOTES